

Amendment No. 1 to HB0314

Farmer
Signature of Sponsor

AMEND Senate Bill No. 252*

House Bill No. 314

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 29-13-106, is amended by deleting subsection (h) and substituting:

(h)

(1) The maximum award pursuant to subsection (e) is equal to one hundred five percent (105%) of the national average of the maximum compensation award provided by the fifty (50) states within the United States, the District of Columbia, and the United States Virgin Islands, rounded up to the nearest one hundred dollars (\$100).

(2) Beginning January 1, 2026, and on an annual basis thereafter, the state treasurer shall compare the maximum award limit for this program with the average of the maximum award limits of the fifty (50) states within the United States, the District of Columbia, and the United States Virgin Islands. If any of the states or territories do not have a maximum award limit that is ascertainable or set in a manner similar to that of this state, then the state treasurer shall eliminate that state or territory from comparison.

(3) If the maximum award, as determined pursuant to this subsection (h), decreases from the immediately preceding maximum award determination, then the state treasurer shall obtain the written approval of the chair of the committee on finance, ways and means of the senate and the chair of the committee having jurisdiction over finance, ways, and means in the house of representatives prior

to publishing the reduced maximum award. If written approval is not obtained prior to the May 1 publication date, then the maximum award must not be decreased.

(4) Notwithstanding another law to the contrary, the state treasurer shall make an adjustment to the maximum award amount by publishing the adjusted maximum award on the department of treasury website by no later than May 1 of the comparison year. An adjustment made pursuant to this section is effective on July 1 of the comparison year, and applies to claims filed for crimes occurring on or after that date. The determination and publication of the adjusted maximum award by the state treasurer is not a rule as defined in § 4-5-102, and such actions of the state treasurer are exempt from the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(5) By June 30, 2025, the state treasurer shall publish on the department of treasury website the maximum compensation award determined pursuant to this section for claims filed for crimes occurring on or after July 1, 2025.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.